

Before the
FEDERAL MARITIME COMMISSION

Docket No. 22-21

MRSF, Inc.
v.
YANG MING MARINE TRANSPORT CORPORATION

MOTION TO DISMISS

Respondent Yang Ming Marine Transport Corporation (“Respondent” or “Yang Ming”) respectfully submits this Motion to Dismiss pursuant to 46 C.F.R. 502.70 for the repeated failure of Complainant to comply with the Presiding Officer’s orders, most recently her Order of May 30, 2023. We apologize in advance for having to make this motion, especially so close to the date for submitting Respondent’s Opposition Brief, but we hope the Presiding Officer will understand why this action was necessary.

On May 30, 2023, the Presiding Officer issued an Order to Correct Filings (“Order”) requiring MSRF, Inc. (“MSRF” or “Complainant”) by June 12, 2023 to replace the “damages table [which] is partially illegible and should be replaced in the resubmitted Confidential Version Appendix.2.” The Exhibit in question originally consisted of pages marked CX_00160-CX_00164.

The Order specifically instructed that the revised submission “have identical pagination to the initially filed version and may not include any new text or exhibits...” Order at 3. Further, the Order instructed that “text and exhibits are not to be supplemented in MSRF’s revised

filings.” Order at 4. See also Order at 3-4. (Respondent will not be given additional time to file the remaining briefs and supporting materials because the text and exhibits will be the same).

Despite these express instructions not to supplement earlier filings, Complainant proceeded to do just that. On June 9, MSRF filed, among other things, a revised Exhibit E (Complainant’s Revised Confidential Appendix (Exhibit E to the Reich Declaration)) that directly contravened the Order by adding supplemental material, not merely legible versions of previously illegible pages. This addition of new text is readily evidenced by the fact that Exhibit E now has new pagination, adding pages CX_165-CX180. Furthermore, even a cursory inspection (which is all we had time for) reveals several additional rows of information that did not appear at all in the original Exhibit E. *See* Revised Confidential Appendix, Exhibit E, CX_0169 and CX_0178.

As the Presiding Officer well knows, this is not the first time that Complainant has transgressed the Commission’s Rules and the Presiding Officer’s orders. See, Order on Complainant’s Filings (ALJ April 24, 2023) (Docket Entry No. 43); Order on Motions to Compel and Related Motions (ALJ February 24, 2023) (Docket Entry No.31); Order on Motion for Reconsideration (ALJ January 10, 2023) (Docket Entry No. 22). Nor has Complainant been without repeat warnings: “Complainant is reminded that it is required to prosecute its claims in good faith and that failure to do so or to abide by ... any order issued in this matter, can result in dismissal of the action or dismissal of claims.” Order of January 10, 2023 at 4; “Complainant is again reminded that it must abide by the deadlines in this proceeding.... Failure to follow this order can result in documents or testimony being excluded, adverse inferences drawn, or dismissal of the case.” Order of February 24, 2023 at 13-14.

Based on the foregoing, Respondent respectfully moves that the Presiding Officer dismiss this proceeding for Complainant's multiple failures to follow FMC Rules and orders issued by the Presiding Officer. In the alternative, Respondent respectfully requests that Exhibit E be stricken from the record in this proceeding.

Dated: June 12, 2023

Respectfully submitted,

By: /s/ *Rebecca A. Fenneman*
Jeffrey/Fenneman Law + Strategy, PLLC

Attorneys for YANG MING MARINE
TRANSPORT CORPORATION, Respondent

Rebecca A. Fenneman (DC Bar No. 1722599)
Eric C. Jeffrey (D.C. Bar: No: 252585)
700 12th Street, NW Suite 700
Washington, DC 20005
Tel: (202) 904-2301

CERTIFICATE OF SERVICE

I certify that on the 12th day of January, 2023, a true and correct copy of the foregoing document was served by electronic mail on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

ATTORNEYS FOR COMPLAINANT:

CLARK HILL PLC

R. Kevin Williams
Mark R. Ludwikowski
Mark J. Andrews
Nicole Prefontaine
312.985.5907
kwilliams@clarkhill.com
mludwikowski@clarkhill.com
mandrews@clarkhill.com
nprefontaine@clarkhill.com
130 E. Randolph Street, Suite 3900
Chicago, IL 60601

/s/ Rebecca A. Fenneman

Rebecca A. Fenneman

RFenneman@JeffreyFenneman.com

Tel: (202) 904-2301

Jeffrey/Fenneman Law + Strategy, PLLC

700 12th Street, NW Suite 700

Washington, DC 20005